

LIST OF FORMS
(The Patent Amendment Rules 2024)

Form No.	Section and rule	Title
1	Sections 7, 54 and 135 and rule 20(i).	Application for grant of a patent.
2	Section 10; rule 13.	Provisional/Complete Specification.
3	Section 8 and rule 12.	Statement and undertaking.
4	Sections 53(2)and142(4),rules12(5),13(6), 24B(6),24C(11),80(1A),130and 138.	Request for extension of time or condonation of delay
5	Section 10(6) and rule 13(6).	Declaration as to inventorship.
6	Sections 20(1), 20(4), 20(5) and rules 34(1), 35(1) or 36(1).	Claim or request regarding any change in applicant for patent.
7	Section 25(3) and rule 55A.	Notice of opposition on grant of a patent.
7A	Section 25(1) and rule 55(1)	For filing are presentation opposing grant of a patent under sub-section(1) of section 25.
8	Sections 28(2), 28(3) or 28(7) and rules 66, 67, 68.	Request or claim regarding mention of inventor as such in a patent.
8A	Rule 70A	Certificate of Inventorship
9	Section 11A(2) and rule 24A.	Request for publication.
10	Section 44 and rule 75.	Application for amendment of patent.
11	Sections 51(1), 51(2) and rules 76, 77.	Application for direction of the Controller.
12	Sections 26(1) & 52(2) and rules 63A and 79.	Request for grant of patent.
13	Section 57 and rule 81(1).	Application for amendment of the application for patent/ complete specification.
14	Sections 57(4), 61(1), 63(3), 78(5) and 87(2) and rules 81(3)(b), 85(1), 87(2), 98(1), 101(3) or 124	Notice of opposition to amendment/ restoration/ surrender of patent/ grant of compulsory licence or revision of terms thereof or to a correction of clerical errors.
15	Section 60 and rule 84.	Application for restoration of patents.
16	Sections 69(1) or 69(2) and rules 90(l) and 90(2).	Application for registration of a title/interest in a patent or share in it or registration of any document purporting to affect proprietorship of the patent.
17	Sections 84(1), 91, 92 or 92(A) and rule 96.	Application for compulsory licence.
18	Section 11B and rules 20(4)(ii) and 24B(l)(i).	Request for examination of application for patent.

19	Section 85(1) and rule 96.	Application for revocation of a patent for non-working.
20	Section 88(4) and rule 100.	Application for revision of terms and conditions of licence.
21	Section 94, rule 102(1).	Request for termination of compulsory licence.
22	Rules 109(1) and 112.	Application for registration of Patent Agent.
23	Section 130(2) and rule 117(1).	Application for the restoration of the name in the register of Patent Agents.
24	Sections 77(1)(f), 77(1)(g) and rules 130(1) and 130(2).	Application for review/setting aside controller's decision/order.
25	Section 39 and rule 71(1).	Request for permission for making patent application outside India.
26	Sections 127, 132 and rule 135.	Form of authorization of a Patent Agent/or any person in a matter or proceeding under the Act.
27	Section 146(2) and rule 131(1).	Statement regarding the working of the patented invention on commercial scale in India.
28	Rules 2(fa) and 7	To be submitted by a small entity with every document for which a fee has been specified.
29	Section 118(4) and rules 7(4A), 24C(5) and 26	Request for withdrawal of patent application
30	Rule 8(2)	Miscellaneous form, to be used when no other form is prescribed
31	Section 31 and rule 29A	Grace period

FORM 1 THE PATENTS ACT 1970 (39 of 1970) and THE PATENTS RULES, 2003 APPLICATION FOR GRANT OF PATENT (See section 7, 54 and 135 and sub-rule (1) of rule 20)				(FOR OFFICE USE ONLY)			
				Application No.			
				Filing date:			
				Amount of Fee paid:			
				CBR No:			
				Signature:			
1. APPLICANT'S REFERENCE / IDENTIFICATION NO. (AS ALLOTTED BY OFFICE)							
2. TYPE OF APPLICATION [Please tick (✓) at the appropriate category]							
Ordinary ()		Convention ()		PCT-NP ()		PPH ()	
Divisional ()	Patent of Addition ()	Divisional () ()	Patent of Addition ()	Divisional ()	Patent of Addition ()		
3A. APPLICANT(S)							
Name in Full	Gender (optional, for individuals)	Nationality	Country of Residence	Age (optional, for natural persons)	Address of the Applicant		
	- Male - Female - Others - Prefer not to disclose			- _____ years - Prefer not to disclose	House No.		
					Street		
					City		
					State		
					Country		
					Pin code		
					Email (OTP verification mandatory -will be redacted)		
					Contact number (OTP verification mandatory -will be redacted)		
3B. CATEGORY OF APPLICANT [Please tick (✓) at the appropriate category]							
Natural Person ()		Other than Natural Person ()				Educational institution ()	
		Small Entity ()		Startup ()	Others ()		
4. INVENTOR(S) [Please tick (✓) at the appropriate category]							
Are all the inventor(s) same as the applicant(s) named above?		Yes ()			No ()		

If “No”, furnish the details of the inventor(s)						
Name in Full	Gender (optional, for natural persons)	Nationality	Age (optional, for natural persons)	Country of Residence	Address of the Inventor	
	- Male - Female - Others - Prefer not to disclose		- ____ years - Prefer not to disclose		House No.	
					Street	
					City	
					State	
					Country	
					Pin code	
5. TITLE OF THE INVENTION						
6. AUTHORISED REGISTERED PATENT AGENT(S)				IN/PA No.		
				Name		
				Mobile No. (OTP verification mandatory-will be redacted)		
7. ADDRESS FOR SERVICE OF APPLICANT IN INDIA				Name		
				Postal Address		
				Telephone No.		
				Mobile No. (OTP verification mandatory-will be redacted)		
				Fax No.		
				E-mail ID (OTP verification mandatory-will be redacted)		
8. IN CASE OF APPLICATION CLAIMING PRIORITY OF APPLICATION FILED IN CONVENTION COUNTRY, PARTICULARS OF CONVENTION APPLICATION						
Country	Application Number	Filing date	Name of the applicant	Title of the invention	IPC (as classified in the convention country)	
9. IN CASE OF PCT NATIONAL PHASE APPLICATION, PARTICULARS OF INTERNATIONAL APPLICATION FILED UNDER PATENT CO-OPERATION TREATY (PCT)						
International application number				International filing date		
10. IN CASE OF DIVISIONAL APPLICATION FILED UNDER SECTION 16, PARTICULARS OF ORIGINAL (FIRST) APPLICATION						
Original (first) application No.				Date of filing of original (first) application		
11. IN CASE OF PATENT OF ADDITION FILED UNDER SECTION 54, PARTICULARS OF MAIN APPLICATION OR PATENT						
Main application/patent No.				Date of filing of main application		
12. DECLARATIONS						

(i) Declaration by the inventor(s) (In case the applicant is an assignee: the inventor(s) may sign herein below or the applicant may upload the assignment or enclose the assignment with this application for patent or send the assignment by post/electronic transmission duly authenticated within the prescribed period). I/We, the above named inventor(s) is/are the true & first inventor(s) for this Invention and declare that the applicant(s) herein is/are my/our assignee or legal representative. (a) Date (b) Signature(s) (c) Name(s)			
(ii) Declaration by the applicant(s) in the convention country (In case the applicant in India is different than the applicant in the convention country: the applicant in the convention country may sign herein below or applicant in India may upload the assignment from the applicant in the convention country or enclose the said assignment with this application for patent or send the assignment by post/electronic transmission duly authenticated within the prescribed period) I/We, the applicant(s) in the convention country declare that the applicant(s) herein is/are my/our assignee or legal representative. (a) Date (b) Signature(s) (c) Name(s) of the signatory			
(iii) Declaration by the applicant(s) I/We the applicant(s) hereby declare(s) that: - ☐ I am/We are in possession of the above-mentioned invention. ☐ The provisional/complete specification relating to the invention is filed with this application. ☐ The invention as disclosed in the specification uses the biological material from India and the necessary permission from the competent authority shall be submitted by me/us before the grant of patent to me/us. ☐ There is no lawful ground of objection(s) to the grant of the Patent to me/us. ☐ I am/we are the true & first inventor(s). ☐ I am/we are the assignee or legal representative of true & first inventor(s). ☐ The application or each of the applications, particulars of which are given in Paragraph-8, was the first application in convention country/countries in respect of my/our invention(s). ☐ I/We claim the priority from the above mentioned application(s) filed in convention country/countries and state that no application for protection in respect of the invention had been made in a convention country before that date by me/us or by any person from which I/We derive the title. ☐ My/our application in India is based on international application under Patent Cooperation Treaty (PCT) as mentioned in Paragraph-9. ☐ The application is divided out of my /our application particulars of which is given in Paragraph-10 and pray that this application may be treated as deemed to have been filed on DD/MM/YYYY under section 16 of the Act. ☐ The said invention is an improvement in or modification of the invention particulars of which are given in Paragraph-11.			
13. FOLLOWING ARE THE ATTACHMENTS WITH THE APPLICATION			
(a) Form 2			
Item	Details	Fee	Remarks
Complete/ provisional specification)#	No. of pages		
No. of Claim(s)	No. of claims and No. of pages		
Abstract	No. of pages		
No. of Drawing(s)	No. of drawings and No. of pages		

In case of a complete specification, if the applicant desires to adopt the drawings filed with his provisional specification as the drawings or part of the drawings for the complete specification under rule 13(4), the number of such pages filed with the provisional specification are required to be mentioned here.

(b) Complete specification (in conformation with the international application)/as amended before the International Preliminary Examination Authority (IPEA), as applicable (2 copies).

(c) Sequence listing in electronic form

(d) Drawings (in conformation with the international application)/as amended before the International Preliminary Examination Authority (IPEA), as applicable (2 copies).

(e) Priority document(s) or a request to retrieve the priority document(s) from DAS (Digital Access Service) if the applicant had already requested the office of first filing to make the priority document(s) available to DAS.

(f) Translation of priority document/Specification/International Search Report/International Preliminary Report on Patentability.

(g) Statement and Undertaking on Form 3

(h) Declaration of Inventorship on Form 5

(i) Power of Authority

(j).....

Total fee ₹.....in Cash/ Banker's Cheque /Bank Draft bearing No..... Date.....on
Bank.

I/We hereby declare that to the best of my/our knowledge, information and belief the fact and matters slated herein are correct and I/We request that a patent may be granted to me/us for the said invention.

Dated this.....day of.....20.....

Signature:

Name:

To,

The Controller of Patents

The Patent Office, at.....

Note: -

* Repeat boxes in case of more than one entry.

* To be signed by the applicant(s) or by authorized registered patent agent otherwise where mentioned.

* Tick (✓)/cross (x) whichever is applicable/not applicable in declaration in paragraph-12.

* Name of the inventor and applicant should be given in full, family name in the beginning.

* Strike out the portion which is/are not applicable.

* For fee: See First Schedule.

FORM 2
THE PATENT ACT 1970
(39 of 1970)
&
The Patents Rules, 2003
PROVISIONAL/COMPLETE SPECIFICATION
(See section 10 and rule13)

1. TITLE OF THE INVENTION

2. APPLICANT (S)

(a) NAME:

(b) NATIONALITY:

(c) ADDRESS:

3. PREAMBLE TO THE DESCRIPTION

PROVISIONAL

The following specification describes the invention.

COMPLETE

The following specification particularly describes the invention and the manner in which it is to be performed.

4. DESCRIPTION (Description shall start from next page.)

5. CLAIMS (not applicable for provisional specification. Claims should start with the preamble — “I/we claim” on separate page)

6. DATE AND SIGNATURE (to be given at the end of last page of specification)

7. ABSTRACT OF THE INVENTION (to be given along with complete specification on separate page)

Note: -

*Repeat boxes in case of more than one entry.

*To be signed by the applicant(s) or by authorized registered patent agent.

*Name of the applicant should be given in full , family name in the beginning .

*Complete address of the applicant should be given stating the postal index no./code, state and country.

*Strike out the column which is/are not applicable

FORM 3

THE PATENTS ACT, 1970

(39 of 1970)

and

THE PATENTS RULES, 2003

STATEMENT AND UNDERTAKING UNDER SECTION 8

(See sub-rule (2) and (3) of Rule 12)

1. Name of the applicant(s).			I/We..... hereby declare:		
2. Name, address and nationality of the joint applicant.			(i) that I/We who have made the application for patent number in India, dated, alone/jointly with....., (ii) that I/We have not made any application for the same/substantially the same invention outside India Or (iii) that I/We have made for the same/ substantially same invention, application(s) for patent in the other countries, the particulars of which are given below:		
Name of the country	Date of application	Application No.	Status of the application	Date of publication	Date of disposal
3. Name and address of the assignee			(i) that the rights in the application(s) filed in India has/have been assigned to (ii) that I/We undertake that upto the date of grant of the patent by the Controller, I/We would keep him informed in writing regarding the details of corresponding applications for patents filed outside India in accordance with the provisions contained in section 8 and rule 12. Dated this.....day of.....20.....		

4. To be signed by the applicant or his authorized registered patent agent.	Signature.
5. Name of the natural person who has signed.	(.....)
	To The Controller of Patents, The Patent Office, at.....
Note. - Strike out whichever is not applicable.	

FORM 4

THE PATENTS ACT, 1970

(39 of 1970)

and

THE PATENTS RULES, 2003

REQUEST FOR EXTENSION OF TIME OR CONDONATION OF DELAY

[See sections 53(2), and 142 (4); rules 12(5), 13(6), 24B(6), 24C(11), 80(1A), 130, 131(2) and 138]

1. Name of the applicant	I/We..... hereby request for extension of time for months(s) under section/rule in connection with my/our/application/Patent No..... The reasons for making the request are as follows:- Dated this.....day of20.....
2. To be signed by the applicant or his authorized registered patent agent	Signature (.....)
3. Name of the natural person who has signed	
	To The Controller of Patents, The Patent Office, at.....

Note. - For fee: See First Schedule.

FORM 5
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003
DECLARATION AS TO INVENTORSHIP
[See section 10(6) and rule 13(6)]

1. NAME OF APPLICANT (S)

hereby declare that the true and first inventor(s) of the invention disclosed in the complete specification filed in pursuance of my /our application numbered dated is/are

2. INVENTOR (S)

(a) NAME

(b) NATIONALITY

(c) ADDRESS

Dated thisday of.....20.....

Signature: -

Name of the signatory: -

3. DECLARATION TO BE GIVEN WHEN THE APPLICATION IN INDIA IS FILED BY THE APPLICANT (S) IN THE CONVENTION COUNTRY: -

We the applicant(s) in the convention country hereby declare that our right to apply for a patent in India is by way of assignment from the true and first inventor(s).

Dated thisday of.....20.....

Signature: -

Name of the signatory: -

4. STATEMENT (to be signed by the additional inventor(s) not mentioned in the application form)

I/We assent to the invention referred to in the above declaration, being included in the complete specification filed in pursuance of the stated application.

Dated thisday of.....20.....

Signature of the additional inventor(s): -

Name: -

To, The Controller of Patents

The Patent Office, at.....

Note

***Repeat boxes in case of more than one entry.**

***To be signed by the applicant(s) or by authorized registered patent agent otherwise where mentioned.**

***Name of the inventor and applicant should be given in full, family name in the beginning .**

***Complete address of the inventor should be given stating the postal index no./code, state and country.**

***Strike out the column which is/ are not applicable**

FORM 6
THE PATENTS ACT, 1970
(39 of 1970)

&
The Patents Rules, 2003
CLAIM OR REQUEST REGARDING ANY CHANGE IN APPLICANT
FOR PATENT

[See sections 20(1), 20(4) and 20(5); rules 34(1), 35(1) and 36(1)]

1. Repeat the columns (a) to (c) if there are more than one applicant.
2. Insert the name in full. The family or principal name in the beginning if the applicant is a natural person.
3. Insert the complete address including postal index number/code and state and/or country.
4. Insert the nationality.
5. State the name of the applicant(s) for patent.
6. Original and certified copies of the documents shall accompany the claim or request. Consent by the legal representative of the deceased joint applicant shall be filed whenever required.
7. Insert the details of the documents.
8. Complete address including postal index number/code and state along with Telephone and fax number(s).
9. To be signed by the applicant(s) or authorized registered patent agent.
10. Name of the natural person who has signed.

I/We,¹ _____
(a)² _____
(b)³ _____
(c)⁴ _____

hereby request that the application for patent
No. dated
made by⁵ _____

may proceed in my/our name and further request
that direction of the Controller, if necessary be
made in that effect

Reasons for making the above request are as
follows:-

I furnish the following document(s) in support of my
above request:⁶

(a)⁷ _____
(b)⁷ _____
(c)⁷ _____

My/our address for service in India is:⁸

Dated this day of, 200

Signature ⁹..
(-----) ¹⁰..

To
The Controller of Patents,
The Patent Office,
At

N.B.: This form is not applicable for mere change of name.

Note: (a) Strike out whichever is not applicable.

(b) For fee:-See First Schedule.

FORM 7
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
NOTICE OF OPPOSITION
[See sections 25(2) and rule 55A]

1. State names, address and nationality. I/We,¹ _____

2. State the grounds taken one after another. hereby give notice of opposition to
patent No.) granted on
application No. dated
published on dated made
by _____
on the grounds ².
3. Complete address including postal index number/code and state along with Telephone and fax number. _____

4. To be signed by the opponent or by his authorized registered patent agent. My/Our address for services in India is..³
.....
.....
5. Name of the natural person who has signed. Signature ..⁴....
(.....) ⁵....

To
The Controller of Patents,
The Patent Office,
At

For fee : See First Schedule.

FORM 7A
THE PATENTS ACT, 1970 (39 OF 1970)
AND
THE PATENTS RULES, 2003
REPRESENTATION FOR OPPOSITION TO GRANT OF PATENT
[see rule 55]

1. State names, address and nationality. I/We,.....
.....
hereby give representation by way of
opposition to the grant of patent in
respect of application
no.....dated.....
made by..... and published off
.....
2. State the grounds taken one after another. on the grounds
.....
.....
3. Complete address including postal My/our address for service in India is
.....
index number/code and state along
with telephone and fax number.
4. To be signed by the opponent or by his/her authorized registered patent agent. Signature
5. Name and designation of the natural person who has signed. (.....)

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The Controller of Patents,
The Patent Office,
At

FORM 8
THE PATENTS ACT, 1970
 (39 of 1970)
 &
 The Patents Rules, 2003
REQUEST OR CLAIM REGARDING MENTION OF
INVENTOR AS SUCH IN A PATENT

[See sections 28(2), 28(3) and 28(7); rules 66, 67 and 68]

1. State names, address and nationality of the person making this application.

I/We,¹.....

hereby state/claim that the following person(s) be mentioned as inventor(s) in the patent application No.dated.....made by.....

2. Insert the name of the person mentioned as inventor.

.....or hereby declare that.².....

.....
 ought not to have mentioned as inventor in the application for Patent No.dated.....made by.....and I/We hereby apply for a certificate to that effect.

3. Complete address including postal index number/code and state along with Telephone and fax number(s).

A Statement setting out the circumstances under which this application is made is attached together with the copy/copies thereof as required under the rules.

4. To be signed by the applicant or his authorized registered patent agent.

My/Our address for service in India is³,

Dated this day of 20

5. Name of the natural person who has signed.

Signature..⁴...

(.....)⁵.....

To
 The Controller of Patents,
 The Patent Office,
 At

 Note :- For fee : See First Schedule.

FORM 8A THE PATENTS ACT, 1970 (39 of 1970) and THE PATENTS RULES, 2003 Certificate of Inventorship [See rule 70A]	
1. Name of the Inventor, and Patent Number.	I..... , Inventor in respect of Patent Number, hereby request for the grant of a ‘Certificate of Inventorship’ in respect of the Patent. OR I..... , Inventor in respect of Patent Number, hereby request for the grant of a duplicate certificate of inventorship in respect of the Patent. The statement setting out the circumstances in which the original certificate of inventorship was lost, destroyed, damaged or cannot be produced are as follows:
2. To be signed by the inventor and the date of filing of this request.	Signature (BELOW INFORMATION IS MANDATORILY REQUIRED TO BE SUBMITTED) (Name of the Inventor who has signed) Aadhaar number of the Inventor (for Indian inventors) House No. Apartment/Street City State Country Pin Code Mobile Phone: (OTP verification mandatory-will be redacted) Email: (OTP verification mandatory-will be redacted) Dated this.....day of 20....
	To The Controller of Patents, The Patent Office, at.....
Note.- This Certificate does not, in any manner whatsoever, confer or derogate from any rights under the patent.	

FORM 9
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
REQUEST FOR PUBLICATION
[See section 11A(2); rule 24A]

1. Name, address and nationality of
the applicant(s).

I/We¹.....

.....

.....

.....

2. To be signed by the applicant or
his authorized registered patent
agent.

hereby request for early publication of my/our

Patent application No dated

.....under section 11A(2) of the

Act.

Dated thisday of 20

3. Name of the natural person who
has signed.

Signature ..²...

(-----).³....

To

The Controller of Patents,

The Patent Office,

At

Note: - For fee : See First Schedule

FORM 10
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR AMENDMENT OF PATENT
[See section 44; rule 75]

1. Repeat the columns (a) to (c) if there are more than one applicant.

I/We.¹..

(a).².....

(b).³.....

2. Insert the name in full. Family or principal name in the beginning if the applicant is a natural person.

(c).⁴.....

(a).².....

(b).³.....

3. Insert the complete address including postal index number/code and state and/or country.

(c).⁴.....

(a).².....

(b).³.....

(c).⁴.....

4. Insert the nationality.

hereby request that Patent No.-----

dated_____granted to

5. Complete address including postal index number/code and state along with Telephone and fax number(s).

may be amended by substituting my/our name for the name of the grantee and in support to my/our request, I/We furnish the following documents :

.....

My/our address for service in India is.⁵..

.....

.....

Dated this day of 20

6. To be signed by the applicant(s) or his authorised registered patent agent.

Signature.. 6.....

(-----).⁷...

7. Name of the natural person who has signed.

To
The Controller of Patents,
The Patent Office,
At.....

Note : - For fee : See First Schedule

FORM 11
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR DIRECTION OF THE CONTROLLER
[See sections 51(1) and 51(2); rules 76 and 77]

1. State the name in full, address and nationality. I/We¹.....

.....
.....

hereby apply for the following direction in respect

of patent No.

dated.....grant to.....

.....

2. Complete address including postal index number/code and state along with Telephone and fax number(s).

The reasons for making this application are as follows :

.....

.....

3. To be signed by the applicant(s) or his authorised registered patent agent.

My/Our address for service in India

is:..²

.....

Dated thisday of 20

4. Name of the natural person who has signed.

Signature ..³...
(.....)⁴

To
The Controller of Patents,
The Patent Office,
At

Note: - For fee : See First Schedule

FORM 12
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

REQUEST FOR GRANT OF PATENT UNDER SECTION 26(1) & 52(2)

[See sections 26(1) & 52(2); rules 63A and 79]

1. Repeat the columns (a) to (c) if there are more than one applicant. I/We¹.....
.....
2. Insert the name in full. Family or principal name in the beginning, if the applicant is a natural person. (a).².....
.....
(b).³.....
.....
3. Insert the complete address including postal code and state and/or country. (c).⁴.....
.....
4. Nationality of the person. (i) hereby declare :
that I/We made opposition under section 25(3) before the Controller or a petition under Section 64 of the Act before the Appellate Board or High Court of⁵.....
.....
and the details of the patent and the opposition for the petition are given below :
6. Name, address and nationality of the true and first inventor. Patent No. dated
.....Grantee / Patentee
.....Oppositio
n
7. Complete address including postal index number code and state along with Telephone and fax number(s). Notice dated ----- or Petition No.
.....dated.....
(ii) that I/We have claimed to be the true and first inventor(s)/assignee(s)/legal representative(s) of⁶
8. To be signed by the applicant(s)

or his authorised registered patent agent.
.....
.....

the true and first inventor of the invention for which the said patent was granted.

(iii) that by an order in the said opposition or petition the patent was revoked/the complete specification of the patent was directed to be amended by exclusion of claims thereof.

(iv) that the Controller or Appellate Board or Court ordered to grant to me a patent in lieu of the said patent/part of the invention excluded by the amendment.

(v) that I/We submit a statement and certified copy of the order of the Controller or Appellate Board or Court in support of my application and request that a patent be granted to me in accordance with the order of the Appellate Board or Court.

9. Name of the natural person who has signed. My/Our address for service in India is : .⁷
.....
.....

Dated this day of 200

Signature ⁸

(-----)⁹
To
The Controller of Patents,
The Patent Office,
At

Note: -(a) Strike out whichever is not applicable.
.....
(b) For fee : See First Schedule.
.....

FORM 13
THE PATENTS ACT, 1970
(39 of 1970)
and
THE PATENTS RULES, 2003
**APPLICATION FOR AMENDMENT OF THE APPLICATION FOR PATENT/
 COMPLETE SPECIFICATION/ANY DOCUMENT RELATED THERETO**
 [See section 57; sub-rule (1) of rule 81]

1. Name of the applicant(s).	I/We..... request leave to amend the application/any document related thereto/complete specification with respect to application for patent No.....dated.....as highlighted in the copy hereto annexed. My/Our reason for making this request are as follows:- I/We declare that no action for infringement or for the revocation of the patent in question is pending before Appellate Board or a Court. I/We declare that the facts and matters stated herein are true to the best of my/our knowledge information and belief.
2. To be signed by the applicant(s) or patentee(s) or by his authorized registered patent agent	Dated this.....day of.....20..... Signature.....
3. Name of the natural person who has signed	(.....)
	To The Controller of Patents, The Patent Office, at.....
Note.- For fee: See First Schedule.”;	

FORM 14
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

**NOTICE OF OPPOSITION TO AMENDMENT / RESTORATION / SURRENDER
OF PATENT/GRANT OF COMPULSORY LICENCE OR REVISION OF TERMS
THEREOF OR TO CORRECTION OF CLERICAL ERRORS**

[See sections 57(4), 61(1), 63(3), 78(5) and 87(2); rules 81(3)(b), 85(1), 87(2),
98(1), 101(3) and 124]

1. State the name, address and nationality. I/We¹
.....
hereby give notice of opposition: -
to the amendment of the application/specification with
respect to application for Patent No.
dated
OR
to the application for restoration of Patent No.
dated
OR
to the offer to surrender the Patent No.
dated
OR
for the grant of compulsory licence, or revocation of Patent
No. dated
OR
for the revision of the terms and conditions of licence in
respect of Patent No. dated
OR
for correction of a clerical error in Patent No.
dated / Specification No.
dated in respect of Patent
No. dated or Patent
application No. dated
The grounds in which the said opposition is made are as
follows:
.....
.....
My / Our address for service in India is: ²
.....
Dated this day of 20.....
Signature . 3.
(.....) ⁴
2. Complete address including postal index number/code and state along with Telephone and fax number(s).
3. To be signed by the opponent or his authorised registered patent agent.
4. Name of the natural person who has signed.
- To
The Controller of Patents,
The Patent Office,
At

Note: -(a) Strike out whichever is not applicable.
(b) For fee : See First Schedule.

FORM 15
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR THE RESTORATION OF PATENT
[See section 60; rule 84]

1. Insert the name, address, I/We¹.....
nationality of the applicant(s).

hereby apply for an order of the Controller for the
restoration of Patent No.dated
.....granted to.....

The circumstances which led to the failure to pay
the renewal fee to pay the renewal fee for the year
.....
on or before are as follows:

I/We declare that I/We have not assigned the patent
to any other person(s) and that the facts and
matters stated herein are true to the best of my/our
knowledge information and belief.

Dated this day of 20

2. To be signed by the applicant(s) or Signature ².....
by his authorised registered patent
agent. (.....)³

3. Name of the natural person who
has signed.

To
The Controller of Patents,
The Patent Office,
At

Note: For fee : See First Schedule.

FORM 16
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

**APPLICATION FOR REGISTRATION OF TITLE/INTEREST IN A
PATENT OR SHARE IN IT OR REGISTRATION OF ANY
DOCUMENT PURPORTING TO AFFECT PROPRIETORSHIP OF
THE PATENT**

[See sections 69(1), 69(2); rules 90(1) and 90(2)]

1. Insert the name, address and nationality of the applicant(s).

I/We¹.

.....
.....
hereby apply that my/our name(s) may be registered in the register of patent as a person entitled to the patent/a share in the patent/an interest in the patent details of which are specified below:

2. A description of the nature of the document, giving the date and the names, address and nationality of the parties thereto.

Patent No.dated.....
Grantee.....Patentee
and in proof thereof we transmit the accompanying².....
.....with a certified copy thereof.

OR

3. Complete address including postal code and state along with telephone and fax number(s).

Transmit herewith an attested copy of²
.....
.....in respect of Patent
No(s).....dated
granted to
of which the patentee is
..... as
well as the original document for verification and
I/We hereby apply that a notification thereof may
be entered in the register of patents.

4. To be signed by the applicant or his authorised registered patent agent.

My/Our address for service in India is³.
.....
.....

Dated thisday of 20.....

5. Name of the natural person who has signed.

Signature . 4.....

(-----)⁵

To

The Controller of Patents,

The Patent Office,

At

Note : - (a) For fee : See First Schedule.

(b) Strike out whichever is not applicable.

FORM 17
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

APPLICATION FOR COMPULSORY LICENCE

[See sections 84(1), 91, 92(1) or 92A; rule 96]

1. Name, address and nationality of the applicant(s). I/We.¹.....
.....
hereby apply for the grant of a compulsory licence
under Patent No.dated
granted to
..... for which the patentee is
..... on the following
grounds, namely :
.....
.....
2. Certified copies of the documents are to be enclosed in duplicate. I/We declare that the facts and matters stated herein are true to the best of my/our knowledge, information and belief.
3. Complete address including postal code and state along with telephone and fax number(s). The details of documentary evidence in support of my/our interest and the grounds stated above are given below ².....
(a)
(b)
(c)
My/Our address for service in India is: ³.....
.....
4. To be signed by the applicant(s) or by his authorised registered patent agent. Dated this day of 20.....
5. Name of the natural person who has signed. Signature ⁴.....
(-----) ⁵.....
To
The Controller of Patents,
The Patent Office,
At

Note: For fee : See First Schedule.

FORM 18 THE PATENTS ACT, 1970 (39 of 1970) & The Patents Rules, 2003 REQUEST/EXPRESS REQUEST FOR EXAMINATION OF APPLICATION FOR PATENT [See section 11B and rule 20(4)(ii), 24B(1)(i)]	(FOR OFFICE USE ONLY) RQ. No: Filing Date: Amount of Fee Paid: CBR No: Signature:
1. APPLICANT (S)/OTHER INTERESTED PERSON (a) NAME : (b) NATIONALITY : (c) ADDRESS : (d) date of publication of the application under section 11A	
2. Statement in case of request for examination made by the applicant(s) I/We hereby request that my/our application for patent no. _____ filed on _____ for _____ the _____ invention titled _____ shall be examined under sections 12 and 13 of the Act. Or I/We hereby make an express request that my/our application for patent no. _____ filed on _____ _____ based on Patent Cooperation Treaty (PCT) application no. _____ dated _____ made in country _____ shall be examined under sections 12 and 13 of the Act, immediately without waiting for the expiry of 31 months as specified in rule 20(4)(ii).	
3. Statement in case of request for examination made by any other interested person I/We the interested person request for the examination of the application no. _____ dated _____ filed by the applicant _____ titled _____ under sections 12 and 13 of the Act. As an evidence of my/our interest in the application for patent following documents are submitted. (a) _____ _____	
4. ADDRESS FOR SERVICE Dated this _____ day of _____ 20____ Signature Name of the signatory To, The Controller of Patents The Patent Office, at	
NOTE: *To be signed by the applicant(s) or by his authorized registered patent agent *Strike out the column which is/are not applicable * For fee : See First Schedule	

"FORM 18A THE PATENTS ACT,1970 and THE PATENT RULES,2003 REQUEST FOR EXPEDITED EXAMINATION OF APPLICATION FOR PATENT [See section 11B and Rule 24C)	(FOR OFFICE USE ONLY) RQ No.: Filing Date: Amount of fee Paid: CBR no: Signature:
1. APPLICANT(s) (A)NAME: (B) NATIONALITY: (C) ADDRESS:	
2. I/We -----hereby request that my/our application for patent no.-----filed 011-----for -----the----- ----- invention titled -----shall be examined under sections 12 and 13 of the Act. or I/We -----hereby request that my/our application for patent no.-----filed on-----for -----the----- ----- invention titled ----- based on Patent Cooperation Treaty (PCT) application no dated made in country shall be examined under sections 12 and 13 of the Act, immediately without waiting for the expiry of 31 months as specified in rule 20(4)(ii). or I/We hereby request that my/our request for examination bearing no. -----for application for patent no. ----- -----filed on-----for ----- the----- -----invention titled -----may be converted to a request for expedited examination of patent application under rule 24C and the application shall be examined under sections 12 and 13 of the Act.	
3. The applicant(s) to indicate (by ticking the appropriate box) any of the grounds applicable for request for expedited examination: ☐ that India has been indicated as the competent International Searching Authority or elected as an International Preliminary Examining Authority in the corresponding international application; or ☐ that the applicant is a startup; or ☐ that the applicant is a small entity; or ☐ that the applicant is a natural person or in the case of joint applicants, all the applicants are natural persons, then applicant or at least one of the applicants is a female; ☐ that the applicant is an institution established by a Central, Provincial or State Act, which is owned or controlled by the Government; or ☐ that the applicant is a Government company as defined in clause (45) of section 2 of the Companies Act, 2013 (18 of 2013); or that the applicant is an institution wholly or substantially financed by the Government; or ☐ that the application pertains to a sector which has been notified by the Central Government, on the basis of a request from the head of department of the Central Government; or ☐ that the applicant is eligible under an arrangement for processing a patent application pursuant to an	

agreement between Indian Patent Office and a foreign Patent Office.	
4.	Documents to be mandatorily submitted as evidence of eligibility for availing expedited examination on the grounds:
a.	that India has been indicated as the competent International Searching Authority in the corresponding international application: - Relevant ISA number issued by ISA, India. that India has been elected as an International Preliminary Examining Authority in the corresponding international application: -
	Relevant IPEA number issued by IPEA, India.
b.	that the applicant is a startup:
	A. For an Indian applicant: The certificate of recognition as a startup from Department for Promotion of Industry and Internal Trade. B. In case of a foreign entity: Any document as evidence of eligibility.
c.	that the applicant is a small entity:
	A. For an Indian applicant: Evidence of registration under the Micro, Small and Medium Enterprises Act, 2006 (27 of 2006). B. In case of a foreign entity: Any document as evidence of eligibility.
d.	that the applicant is a natural person or in the case of joint applicants, all the applicants are natural persons, then applicant or at least one of the applicants is a female:
	A. In case of Indian applicant: Photo identity card of female applicant issued by competent authority as evidence of eligibility. B. In case of a foreign applicant: Photo identity card of female applicant issued by competent authority as evidence of eligibility.
e.	Where the applicant is a department of the Government:
	A. In case of Indian applicant: Any document as evidence of eligibility. B. In case of a foreign applicant: Any document as evidence of eligibility.
f.	that the applicant is an institution established by a Central, Provincial or State Act, which is owned or controlled by the Government:
	A. In case of Indian applicant: Any document as evidence of eligibility.

	B. In case of a foreign applicant: Any document as evidence of eligibility.
g.	that the applicant is a Government company as defined in clause (45) of section 2 of the Companies Act, 2013 (18 of 2013):
	A. In case of Indian applicant: Any document as evidence of eligibility. B. In case of a foreign applicant: Any document as evidence of eligibility.
h.	that the applicant is an institution wholly or substantially financed by the Government:
	A. In case of Indian applicant: Any document as evidence of eligibility. B. In case of a foreign applicant: Any document as evidence of eligibility.
i.	that the application pertains to a sector which has been notified by the Central Government, on the basis of a request from the head of a department of the Central Government:
	Notification from the Central Government and documents as maybe required by the Controller.
j.	that the applicant is eligible under an arrangement for processing a patent application pursuant to an agreement between Indian Patent Office and a foreign Patent Office:
	Declarations and documents as maybe required by the Controller."
ADDRESS FOR SERVICE IN INDIA:	
.....	
.....	
.....	
Dated this day of 20 Signature Name of the signatory To The Controller of Patent The Patent Office, at NOTE To be signed by the applicant(s) or by his/ their authorized registered patent agent "Strike out the column(s) which is / are not applicable." For fee: See First Schedule."	

FORM 19
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003
APPLICATION FOR REVOCATION OF A PATENT
FOR NON WORKING

[See section 85(1); rule 96.]

1. Name, address and nationality of the applicant(s). I/We.¹
.....
.....
hereby apply for revocation of Patent No.....dated..... granted tofor which the patentee/applicant for patent is.....
.....for the following reason, namely:
²
2. State the nature of the applicant's interest, the facts on which he relies and the grounds on which the application is made.
.....
.....
The details of documentary evidence in support of my/our interest and the reasons stated above are given below : ³
3. Certified copies of all the documents are to be enclosed in duplicate. (a)
(b)
(c)
4. Complete address including postal index number/ code and state along with telephone and fax number(s). I/We declare that the facts and matters stated herein are true to the best of my/our knowledge, information and belief.
My/Our address for service in India is.⁴
.....
.....
5. To be signed by the applicant(s) or his authorized registered patent agent.
.....
.....

Dated this day of 20

6. Name of the natural person who has signed. Signature .⁵
(.....)⁶

To
The Controller of Patents,
The Patent Office,
At

Note : (a) For fee : See First Schedule.

(b) Strike out whichever is not applicable

F O R M 20
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR REVISION OF
TERMS AND CONDITIONS OF LICENCE
[See section 88(4); rule 100]

1. Name, address and nationality of
the applicant(s).

I/We¹.....

.....

.....

hereby declare :

(i) that Patent No.....dated
was granted to
.....for which
the patentee is

(ii) that I/We am/are holding licence under the
patent, granted by the Controller by an order
dated.....

2. To be signed by the applicant(s)
or by his authorised registered
patent agent.

(i) that the terms and conditions settled by the
Controller have proved to be more onerous than
originally expected and we are unable to work the
invention.

3. Name of the natural person who
has signed.

(iv) that the circumstances in which this application is
made are set forth in the accompanying statement
in duplicate.

I/ We request the Controller to revise the terms and
conditions of the licence.

Dated this day of..... 20

Signature ².....

(.....)³

To

The Controller of Patents,

The Patent Office,

At

Note : (a) For fee : See First Schedule.

(b) Strike out whichever is not applicable.

FORM 21
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
REQUEST FOR TERMINATION OF COMPULSORY LICENCE
[See section 94; rule 102(1)]

1. Name, address and nationality of the applicant(s). I/We¹
.....
hereby apply for the termination of the compulsory licence granted toby the order of the Controller dated.....under Patent No dated..... granted to.....for which the patentee
2. Certified copies of the documents are to be enclosed in duplicate. I/we declare that I am/We are the patentee for the above mentioned patent
I/we declare that I/we derive title/interest in the patent.
I/we make the above mentioned request for termination on the following grounds, namely:
.....
.....
3. Complete address including postal code and state along with telephone and fax number(s). I/we declare that the facts and matters stated herein are true to the best of my/our knowledge, information and belief.
The details of documentary evidence in support of my/our interest and the grounds stated above are given below: ²
(a)
(b)
(c)
My/our address for service in India is: ³
.....
4. To be signed by the applicant(s) or by his authorized registered patent agent.
5. Name of the natural person who has signed.

Dated this day of..... 20

Signature . ⁴

(

) ⁵

To

The Controller of Patents,

The Patent Office,

At

Note : (a) For fee : See First Schedule.

(b) Strike out whichever is not applicable.

FORM 22
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR REGISTRATION OF PATENT AGENT
[See rules 109(1) and 112]

I beg to apply for registration as a patent agent under the Patents Act, 1970

- 1 Certificate testifying to the character of the applicant should be from a person not related to him and being a Gazetted Officer or any other Person whom the Controller thinks fit.

A certificate of character¹
 From.....

 is enclosed herewith.

I hereby declare that I am not subject to any of the dis-qualifications specified in rule 114 of the Patents Rules 2003 and that the information given below is true to the best of my knowledge and belief.

- 2 Family or principal name in the beginning.

Name:².....

Address/place of residence:

Principal place of business:

Address of the branch office if any:

- 3 Either original certificates and other documents or copies thereof duly attested by the Gazetted Officer or any other person whom the Controller thinks fit must be sent with the application

Father's name:

Nationality:

Date and place of birth:

Occupation:

Particulars of qualification for registration as patent agent.³

(a)

(b)

(c)

Dated this day of20

- 4 To be signed by the applicant.

Signature⁴

- 5 Name or the natural person who has signed.

(.....)⁵

To
 The Controller of Patents
 The Patent Office
 at

Note: (a) For fee : See First Schedule
 (b) Attach two recent passport size photographs
 (c) Provide specimen signature in separate sheet

I,
hereby apply for the restoration of my name in the
register of patent agent which was removed on
..... under section 130 or Rule 116. My
name was originally entered in the register on
.....under No
.....

1 To be signed by the applicant. Signature¹

2 Name of the natural person who has signed. (-----)²

To
The Controller of Patents
The Patent Office
at

Note: For fee: See First Schedule.

FORM 24
THE PATENTS ACT, 1970
(39 of 1970)
&
The Patents Rules, 2003
APPLICATION FOR REVIEW/SETTING ASIDE
CONTROLLER'S DECISION/ORDER
[See sections 77(1)(f) and 77(1)(g) and rules 130(1) and 130(2)]

1. State the number of patent or patent application number and the relevant proceeding. In the matter of¹

2. Name, address and nationality of the applicant(s). I/We²

being the applicant(s)/opponent/party in the above matter hereby apply for the review/setting aside of the Controller's decision/order dated the in the above matter.

The grounds for making the application are set forth in the accompanying statement submitted in duplicate.

Dated this day of 20

3. To be signed by the applicant(s) or his authorized registered patent agent. Signature³

4. Name of the natural person who has signed. (-----)⁴

To
The Controller of Patents
The Patent Office
at

Note: For fee: See First Schedule.

FORM 25
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

**REQUEST FOR PERMISSION FOR MAKING PATENT APPLICATION OUTSIDE
INDIA**

[See section 39 and Rule 71(1)]

1. State the title of the invention. I am/We are in possession of an invention for¹
.....
.....
I/We have made an application for the grant of a patent for the
said invention, its number being No.....of
.....Dated.....

OR

2. Name and address of the person (s) I/we hereby attach the brief description of the invention.

I/We intend to make application (s) alone/jointly
with².....
.....

3. Name and address of the assignee for the same/substantially same invention for patent in the
following country/countries/convention countries, namely:-
.....
..... I/We declare that
the rights in the application (s) has/have been assigned to
³.....

I/We request that I/We may be granted permission to make
application (s) for the said invention in the said
country/countries. The reasons for making this application, are
as follows:-

The facts and matters stated above are true to the best of
my/our knowledge, information and belief.

Dated thisday of20

4. To be signed by the applicant
(s) or authorised patent agent.

Signature⁴.....

To
The Controller of Patents
The Patent Office
at

Note: (a) Strike out whichever is not applicable.

(b) For fee See First Schedule.

FORM 26
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

**FORM FOR AUTHORISATION OF A PATENT AGENT/OR ANY
PERSON IN A MATTER OR PROCEEDING UNDER THE ACT**

[See sections 127 and 132; and rule 135]

1. Insert name, address and nationality. I/We¹
2. Insert the name, address and nationality of the person(s) to be authorized. hereby authorise²
3. State the particular matter or proceeding for which the authorisation is made. to act on my/our behalf in connection with³
and request that all notices, requisitions and communication relating thereto may be sent to such person at the above address unless otherwise specified.

I/We hereby revoke all previous authorisation, if any made, in respect of same matter or proceeding.

I/We hereby assent to the action already taken by the said person in the above-matter.

Dated this day of/20

4. To be signed by the person(s) making this authorisation. Signature⁴
5. Name of the natural person who has signed along with designation and official seal, if any. (-----)⁵

To
The Controller of Patents
The Patent Office
at

To be stamped under the Indian Stamp Act, 1899 (2 of 1899).

FORM 27
THE PATENTS ACT, 1970
(39 of 1970)
AND
THE PATENTS RULES, 2003
No Fee
STATEMENT REGARDING THE WORKING OF PATENTED INVENTION(S)
ON A COMMERCIAL SCALE IN INDIA
[See section 146(2) and rule 131(1)]

1. Insert name, address, nationality, patent number(s).	I/ We, the Patentee(s)/ Licensee, in respect of patent number(s)....., furnish this statement, (Explanation: One form may be filed in respect of multiple patents, provided all of them are related patents and are granted to the same patentee(s)).		
2. State the financial year to which the statement relates.	in respect of the financial year		
3. Worked / not worked. Please state whether each patent in respect of which this form is being filed is worked or not worked.	Patent Number(s)	Worked [Tick (✓) if applicable]	Not worked [Tick (✓) if applicable]
4. If not worked, please tick the appropriate reasons	☐ Patented Invention is under development/ commercial trial ☐ Patented Invention is under Review/approval with Regulatory authorities ☐ Exploring commercial licensing ☐ Any other, may specify:		
5. Whether the patent is available for licensing	☐ YES ☐ NO In case of YES, would you be interested in receiving communications from any person interested in seeking a license. If so, kindly provide contact details as below: Email address: Contact Number:		
	The facts and matters stated above are true to the best of my/ our knowledge, information and belief. Dated this day of 20.....		
6. To be signed by Patentee(s) / Licensee / Authorised Agent furnishing the statement.	Signature(s) To The Controller of Patents, The Patent Office, at		

Form 28

FORM 28 THE PATENTS ACT, 1970 (39 of 1970) AND THE PATENTS RULES, 2003 TO BE SUBMITTED BY A SMALL ENTITY /STARTUP/EDUCATIONAL INSTITUTION [See rules 2 (fa), 2(fb), 2(ca) and 7]		
1.	Insert name, address and nationality	I/We..... applicant/patentee in respect of the patent application no..... or patent no..... hereby declare that I/we am/are a small entity in accordance with rule 2(fa) or a startup in accordance with rule 2(fb) or an educational institution in accordance with rule 2(ca) and submit the following document(s) as proof:
2.	Documents to be submitted	
	i. For claiming the status of a small entity:	
	A. For an Indian applicant: Evidence of registration under the Micro, Small and Medium Enterprises Development Act, 2006(27 of 2006).	
	B. In case of a foreign entity: Any other document.	
	ii. For claiming the status of a startup	
	A. For an Indian applicant: Any document as evidence of eligibility, as defined in rule 2(fb).	
	B. In case of a foreign entity: Any other document.	
	iii For claiming the status of an educational institution	
	A. For an Indian applicant: Any document as evidence of eligibility, as defined in rule 2(ca).	
	B. In case of a foreign educational institution: Any other document	
3.	To be signed by the applicant(s) /patentee(s)/authorized registered patent agent.	The information provided herein is correct to the best of my/our knowledge and belief. Dated this ... day of..... 20
4.	Name of the natural person who has signed	Signature.....

“FORM 29

THE PATENTS ACT, 1970
(39 of 1970)
and
THE PATENTS RULES, 2003

REQUEST FOR WITHDRAWAL OF THE APPLICATION FOR PATENT

[See Section 11B(4) and rules 7(4A), 26]

1. Name of the applicant 2. To be signed by the applicant or his authorized registered patent agent 3. Name of the natural person who has signed	I/ We _____ request that the application for patent numbered _____ dated _____ filed by me/us, if applicable, having the request for examination / request for expedited examination numbered..... _____ dated _____, be treated as withdrawn under rule 7(4A) / 26. Dated -----day of-----
N.B. strike out whichever not applicable	Signature (_____) (Name) (Designation) To The Controller of Patents Patent Office at _____

FORM 30
THE PATENTS ACT ,1970
 (39 of 1970)
 and
THE PATENTS RULES,2003
TO BE USED WHEN NO OTHER FORM IS PRESCRIBED
 [See sub-rule (2) of Rule 8]

1. Name of the Applicant/Patentee/Other	I/We			
2. Complete address including postal index number/code and State along with e-mail ID, telephone, mobile and fax number.	House No.	--	Telephone No.	--
	Street	--	Mobile No.	----
	City	--	Fax No.	--
	State	--		
	Country	--		
	Pin code	--	E-mail ID	--
3. Application No. / Patent No.				
4. Relevant section / rules				
5. Purpose of request				
6. Details of request				
7. To be signed by applicant	Signature.....			
8. Name of the natural person who has signed along with designation and official seal, if any.	(. ..)			
	To, The Controller of Patents, The Patent Office, at ”.			

FORM 31 THE PATENTS ACT, 1970 (39 OF 1970) AND THE PATENTS RULES, 2003 GRACE PERIOD [See section 31 and rule 29A]		
1. Name, address, nationality, and application number.	I/ We, the applicant, in respect of application number....., filed on hereby claim the benefit of grace period provided under section 31.	
2. Applicable provision	☐ Section 31(a) ☐ Section 31(b) ☐ Section 31(c) ☐ Section 31(d)	
3. Documents to be submitted as evidence. Note: Evidence may also include an affidavit	(i) Section 31(a)	With reference to: a) the earliest date of display or use BOX FOR DDMMYYYY; and b) that the display occurred with the consent of the true and first inventor or a person deriving title from him; and YES NO c) that the display occurred at an industrial or other exhibition to which the provisions of this section have been extended by the Central Government by notification in the Official Gazette; the following documentary evidence is submitted:
	(ii) Section 31(b)	With reference to: a) the earliest date of publication or use; b) the documentary evidence in respect of section 31(a) above; and c) the documentary evidence to the effect that the publication of any description of the invention occurred in consequence of the display or use of the invention as stated in section 31(b); the following documentary evidence is submitted:
	(iii) Section 31(c)	With reference to: a) the earliest date of use; b) the documentary evidence in respect of section 31(a) or section 31(b) as mentioned above; and

		c) the documentary evidence regarding use of the invention as stated in section 31(c); and d) the documentary evidence or affidavit that the use of the invention occurred without the consent of the true and first inventor or a person deriving title from him; the following documentary evidence is submitted: 	
	(iv) Section 31(d)	With reference to: a) the earliest date of description or publication; b) the description of the invention in a paper read by the true and first inventor before a learned society; c) the description of the invention published by the true and first inventor or with his consent in the transactions of a learned society; the following documentary evidence is submitted: 	
4. Undertaking	That my invention was in the public domain from DDMMYYYY and this application is made not later than 12 months from that date (earliest date as stated above in respect of section 31(a), 31(b), 31(c), or 31(d)).		
	The facts and matters stated above are true to the best of my/ our knowledge, information and belief. Dated this day of 20.....		
5. To be signed by Applicant / Authorised Agent. Note: Affidavit, if any, shall be signed by the applicant.	Signature(s) To The Controller of Patents, The Patent Office, at		
Note: Select the options that are applicable.			